

Memo.No.2899/SC.F/87-1, Genl.Admn. (SC.F) Dept., dt.20.04.1988 regarding Commissioner of Inquiries - cases of NGOs involved with Gazetted Officers also to be referred for Joint Inquiry.

Subject Heading : Commissioner of Inquiries - entrustment of inquiries

Ref : Memo.No.490/SC.E/87-1, G.A.(SC.E) Dept., dt.13.03.87.

In the Memorandum cited, it has been clarified to the Heads of Departments and the Departments of Secretariat, that only cases of employees for whom the appointing authority is the Government should be referred to the Commissioner for Departmental Enquiries and however, in respect of cases enquired into by the Anti-Corruption Bureau and recommended for Departmental action, all cases of Gazetted Officers irrespective of whether the appointing authority is the Government or the Head of the Department shall be referred to the Commissioner for Departmental Enquiries.

2. There may be cases enquired into by Anti-Corruption Bureau where the allegations are common in respect of both Gazetted and Non-Gazetted

Officers and thereby the records also be common. The question as to how to deal with such cases has been examined in the context of Rule 19(5) of the APCS (CC&A) Rules, 1963, extracted below:-

“19(5)(a) Where two or more members of the same service or different services are concerned in any case, the Government or any other authority competent to impose the penalty of dismissal from service on all such members may make an order directing that disciplinary action against all of them may be taken in a common proceeding:

Provided that if the authorities competent to impose the penalty of dismissal on such members are different, such authorities not being the Government, an order for holding such inquiry in a common proceeding may be made by the highest of such authorities with the consent of the other authorities competent to impose the said penalty on others.

(b) Subject to the other provisions of these rules, every such order shall specify the authority that may impose any of the penalties specified in Rule 8 on all the members concerned in the common proceeding and whether the procedure laid down in sub-rule (1) or sub-rule (2) shall be followed in the proceeding”.

3. After careful consideration, it is decided that in cases where a joint enquiry becomes necessary due to the records and evidence etc. being common, the cases of non-gazetted officers also may be entrusted to the Commissioner for Departmental Enquiries along with that of Gazetted Officers, wherever necessary